

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AUDREY ELIZABETH ROBERTS,

Petitioner

VS.

JUSTIN JOSEPH SALINAS,

Respondent

) Case Number: FMS-25-387596

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Audrey Elizabeth Roberts (Mother) and Respondent Justin Joseph Salinas (Father). They share one minor child: Roxanne Salinas (DOB: 11/04/21).
- 2) On May 4, 2026, Mother filed an ex parte Request for Order seeking modification of the existing child custody and visitation (i.e., parenting time) orders. Mother alleges Father was arrested on multiple firearms violations, including negligent discharge of a firearm. Mother requests emergency orders for sole legal and sole physical custody and temporary suspension of Father's visitation, alleging visitation would be detrimental to the child's wellbeing.
- 3) On May 18, 2026, the Court conducted a Readiness hearing. The Court referred the parties to Family Court Services (FCS) Mediation on June 12, 2026 and set a return hearing for June 25, 2026 at 9:00 a.m., in Department 403.
- 4) As of June 20, 2026, Father has not filed a Responsive Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Mother's unopposed request for sole legal and sole physical custody of the minor child is GRANTED. Effective immediately, Mother shall have sole legal and sole physical custody of Roxanne Salinas (DOB: 11/04/21).
- 3) Father's visitation is suspended and shall continue to be suspended until further order of the Court. Should Father wish to have his parenting time reinstated, he may file a Request for Order explaining to the Court why it is in the child's best interest.
- 4) All prior orders not in conflict with the orders made herein shall remain in full force and effect.
- 5) The Court will prepare the Findings and Order After Hearing.